

APR 20 1998



U.S. Department
of Transportation

**Research and
Special Programs
Administration**

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 11981

EXPIRATION DATE: January 31, 2000

(FOR RENEWAL, SEE 49 CFR SECTION 107.109)

1. GRANTEE: Dexter Corporation,
Electric Materials Division
Londondary, NH
2. PURPOSE AND LIMITATION: This exemption authorizes the exemption holder to empty UN 1H1 drums, blend materials with the original contents, then refill and reuse the drums, without leakproofness testing with air, subject to the provisions and limitations specified herein. Reuse must be in accordance with 49 CFR 173.28(b)(7), except that the exemption holder need not be the original filler of the drums. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 173.28(b)(7)(ii) in that leakproofness testing is not required when the terms of this exemption are followed.
5. BASIS: This exemption is based on the application of Dexter Corporation dated October 14, 1997, additional information provided January 16, 1998, and submitted in accordance with 49 CFR 107.105 and the public proceeding thereon.

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6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Flammable liquid, corrosive, n.o.s (ethanolamine, tetramethylammonium hydroxide)	3	UN2924	III
Flammable liquid, corrosive, n.o.s. (isopropanol, hydrochloric acid)	3	UN2924	II
Oxidizing substances, liquid, corrosive, n.o.s (sodium persulphate, fluoboric acid)	5.1	UN3098	III
Corrosive liquid, n.o.s. (nitric acid, ferric nitrate solution)	8	UN1760	II
Corrosive liquid, n.o.s. (hydrobromic acid, hydrochloric acid)	8	UN1760	II
Corrosive liquid, n.o.s. (hydrochloric acid)	8	UN1760	II
Corrosive liquid, n.o.s (ethanolamine, choline base)	8	UN1760	II
Fluoboric acid solution	8	UN1775	II
Hydrobromic acid solution	8	UN1788	II
Hydrochloric acid solution	8	UN1789	II
Corrosive liquid, acidic, inorganic, n.o.s. (nitric acid, fluoboric acid)	8	UN3264	II
Corrosive liquid, acidic, inorganic, n.o.s. (nitric acid, ferric nitrate solution)	8	UN3267	II

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Corrosive liquid, basic, organic, n.o.s. (ethanolamine, choline base)	8	UN3267	II
Corrosive liquid, basic, organic, n.o.s. (ethanolamine, tetramethylammonium hydroxide)	8	UN3267	II

7. PACKAGING AND SAFETY CONTROL MEASURES:

a. PACKAGING - UN 1H1 drums tested and marked as a minimum to the Packing Group II performance level.

b. OPERATIONAL CONTROLS - The UN 1H1 drums must never have been used prior to filling by the original filler. They may be refilled only once by the exemption holder, offered for transportation without leakproofness testing with air, and transported in accordance with the provisions of 49 CFR 173.28(b)(7), except that the exemption holder need not be the original filler, as specified by 49 CFR 173.28(b)(7)(ii), subject to the following provisions:

(1) Each drum must be emptied and refilled by the exemption holder with a blend of materials that contains, as its base component, the material that was originally in the drum. Hazardous materials components are limited to those specified in paragraph 6 herein.

(2) After refilling, but before offering for transportation, each drum must be held for a period of time sufficient to allow for detection of leaks.

(3) Immediately prior to offering for transportation, each drum must be inspected for leaks and may not be offered for transportation if found to be leaking.

(4) Immediately prior to offering for transport, each drum must be inspected for leaks and any drum found to be leaking may not be offered for transport.

8. SPECIAL PROVISIONS:

a. Shippers using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.

b. MARKING - Each drum must be marked "DOT-E 11981" as required in 49 CFR 172.301(c).

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: None as a requirement of this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in 49 CFR 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by 49 CFR 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:



Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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